

1 **SENATE FLOOR VERSION**

2 February 27, 2025

3 COMMITTEE SUBSTITUTE  
4 FOR

5 SENATE BILL NO. 534

By: Wingard of the Senate

and

Fetgatter of the House

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8  
9 An Act relating to medical marijuana license;  
10 amending 63 O.S. 2021, Sections 424 and 427.16, as  
11 last amended by Section 140, Chapter 452, O.S.L. 2024  
12 (63 O.S. Supp. 2024, Section 427.16), which relate to  
13 marijuana transportation license; allowing licensee  
14 to provide certain services; providing certain  
15 requirements for issuance of certain license;  
16 allowing certain annual permit to be issued to  
17 certain licensee; allowing storage by licensee of  
18 certain medical marijuana products; requiring certain  
19 information to be included in inventory manifest;  
20 requiring certain sales receipt prior to certain  
21 services; requiring certain sales to be accomplished  
22 through a third-party vendor; providing certain  
23 requirements for certain delivery; updating statutory  
24 language; creating certain pilot program; providing  
for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 424, is  
amended to read as follows:

Section 424. A. A medical marijuana ~~transportation~~ transporter  
license will be issued to qualifying applicants for a medical

1 marijuana retail, growing, or processing license. The  
2 ~~transportation~~ transporter license will be issued at the time of  
3 approval of a retail, growing, or processing license.

4 B. A ~~transportation~~ transporter license will allow the holder  
5 to transport medical marijuana from an Oklahoma licensed medical  
6 marijuana retailer, licensed growing facility, or licensed processor  
7 facility to an Oklahoma licensed medical marijuana retailer,  
8 licensed growing facility, or licensed processing facility.

9 C. All marijuana or marijuana products shall be transported in  
10 a locked container and clearly labeled "Medical Marijuana or  
11 Derivative".

12 D. A medical marijuana transporter license issued to a licensed  
13 dispensary or pursuant to Section 427.16 of this title shall allow  
14 the licensee to transport medical marijuana from a medical marijuana  
15 dispensary licensed in this state to a medical marijuana patient  
16 licensed in this state with a Veterans Affairs Benefit Summary  
17 Letter with a disability rating of one hundred percent (100%).

18 SECTION 2. AMENDATORY 63 O.S. 2021, Section 427.16, as  
19 last amended by Section 140, Chapter 452, O.S.L. 2024 (63 O.S. Supp.  
20 2024, Section 427.16), is amended to read as follows:

21 A. There is hereby created a medical marijuana transporter  
22 license as a category of the medical marijuana business license.

23 B. Pursuant to Section 424 of this title, the Oklahoma Medical  
24 Marijuana Authority shall issue a medical marijuana transporter

1 license to licensed medical marijuana commercial growers, processors  
2 and dispensaries upon issuance of such licenses and upon each  
3 renewal. Medical marijuana transporter licenses shall also be  
4 issued to licensed medical marijuana research facilities, medical  
5 marijuana education facilities and medical marijuana testing  
6 laboratories upon issuance of such licenses and upon each renewal.

7 C. A medical marijuana transporter license may also be issued  
8 to qualifying applicants who are registered with the Secretary of  
9 State and otherwise meet the requirements for a medical marijuana  
10 business license set forth in the Oklahoma Medical Marijuana and  
11 Patient Protection Act and the requirements set forth in this  
12 section to provide logistics, distribution and storage of medical  
13 marijuana, medical marijuana concentrate and medical marijuana  
14 products.

15 D. A medical marijuana transporter license shall be valid for  
16 one (1) year and shall not be transferred with a change of  
17 ownership. A licensed medical marijuana transporter shall be  
18 responsible for all medical marijuana, medical marijuana concentrate  
19 and medical marijuana products once the transporter takes control of  
20 the product.

21 E. A transporter license shall be required for any person or  
22 entity to transport or transfer medical marijuana, medical marijuana  
23 concentrate or medical marijuana products from a licensed medical  
24 marijuana business to another medical marijuana business, ~~or~~ from a

1 medical marijuana business to a medical marijuana research facility  
2 or medical marijuana education facility, or from a licensed medical  
3 marijuana dispensary to a licensed medical marijuana patient with a  
4 Veterans Affairs Benefit Summary Letter with a disability rating of  
5 one hundred percent (100%).

6 F. A medical marijuana transporter licensee may contract with  
7 multiple licensed medical marijuana businesses.

8 G. A medical marijuana transporter may maintain a licensed  
9 premises to temporarily store medical marijuana, medical marijuana  
10 concentrate and medical marijuana products and to use as a  
11 centralized distribution point. A medical marijuana transporter may  
12 store and distribute medical marijuana, medical marijuana  
13 concentrate and medical marijuana products from the licensed  
14 premises. The licensed premises shall meet all security  
15 requirements applicable to a medical marijuana business. The  
16 Authority shall issue licenses upon proper application by a licensee  
17 and determination by the Authority that the proposed site and  
18 facility are physically and technically suitable.

19 H. A medical marijuana transporter licensee shall use the seed-  
20 to-sale tracking system developed pursuant to the Oklahoma Medical  
21 Marijuana and Patient Protection Act to create shipping manifests  
22 documenting the transport or temporary storage of medical marijuana,  
23 medical marijuana concentrate and medical marijuana products  
24 throughout the state.

1 I. A licensed medical marijuana transporter may maintain and  
2 operate one or more warehouses in the state to handle medical  
3 marijuana, medical marijuana concentrate and medical marijuana  
4 products, provided the licensee possesses a valid, unexpired medical  
5 marijuana transporter license and has applied for and received a  
6 permit for each warehouse location. The Authority shall issue an  
7 annual permit for each warehouse location operated by a licensee  
8 that is equal to the annual medical marijuana transporter license  
9 term. There shall be no limit to the number of permits issued under  
10 a medical marijuana transporter license. A permit shall be issued  
11 only upon proper application by a licensee and determination by the  
12 Authority that the proposed site and facility are physically and  
13 technically suitable. Upon determination that the proposed site and  
14 facility are not physically and technically suitable, the Authority  
15 may deny the permit. Each warehouse location shall be ~~registered~~  
16 approved and inspected by the Authority prior to its use. Medical  
17 marijuana transporter warehouses that are licensed and approved by  
18 the Authority may temporarily store medical marijuana, medical  
19 marijuana concentrate, and medical marijuana products, provided all  
20 temporary storage is documented, tracked, and traceable in the  
21 state-mandated seed-to-sale tracking system.

22 J. With the exception of a lawful transfer between medical  
23 marijuana businesses ~~who~~ that are licensed to operate at the same  
24

1 physical address, all medical marijuana, medical marijuana  
2 concentrate and medical marijuana products shall be transported:

3 1. In vehicles equipped with Global Positioning System (GPS)  
4 trackers;

5 2. In a locked container and clearly labeled "Medical Marijuana  
6 or Derivative"; and

7 3. In a secured area of the vehicle that is not accessible by  
8 the driver during transit.

9 K. A transporter agent may possess medical marijuana at any  
10 location while the transporter agent is transferring medical  
11 marijuana to or from a licensed medical marijuana business, licensed  
12 medical marijuana research facility or licensed medical marijuana  
13 education facility, or from a licensed medical marijuana dispensary  
14 to a licensed medical marijuana patient with a Veterans Affairs  
15 Benefit Summary Letter with a disability rating of one hundred  
16 percent (100%). The Authority shall administer the provisions of  
17 this section and the Authority, the Oklahoma State Bureau of  
18 Narcotics and Dangerous Drugs Control, the Oklahoma State Bureau of  
19 Investigation, and the Attorney General shall have the authority to  
20 enforce the provisions of this section concerning transportation.

21 L. The Authority shall issue a transporter agent license to  
22 individual agents, employees, officers or owners of a transporter  
23 license in order for the individual to qualify to transport medical  
24

1 marijuana, medical marijuana concentrate or medical marijuana  
2 products.

3 M. The annual fee for a transporter agent license shall be  
4 Twenty-five Dollars (\$25.00) and shall be paid by the transporter  
5 license-holder or the individual applicant. Transporter agent  
6 license reprints shall be Twenty Dollars (\$20.00).

7 N. The Authority shall issue each transporter agent a registry  
8 identification card within thirty (30) days of receipt of:

- 9 1. The name, address and date of birth of the person;
- 10 2. Proof of current state residency;
- 11 3. Proof of identity as required for a medical marijuana  
12 business license;
- 13 4. Possession of a valid state-issued driver license;
- 14 5. Verification of employment with a licensed transporter;
- 15 6. The application and affiliated fee; and
- 16 7. A copy of the criminal background check conducted by the  
17 Oklahoma State Bureau of Investigation, paid for by the applicant.

18 O. If the transporter agent application is denied, the  
19 Authority shall notify the transporter in writing of the reason for  
20 denying the registry identification card.

21 P. A registry identification card for a transporter agent shall  
22 expire one (1) year after the date of issuance or upon notification  
23 from the holder of the transporter license that the transporter  
24 agent ceases to work as a transporter.

1 Q. The Authority may revoke the registry identification card of  
2 a transporter agent who knowingly violates any provision of this  
3 section, and the transporter is subject to any other penalties  
4 established by law for the violation.

5 R. The Authority may revoke or suspend the transporter license  
6 of a transporter that the Authority determines knowingly aided or  
7 facilitated a violation of any provision of this section, and the  
8 license holder is subject to any other penalties established in law  
9 for the violation.

10 S. Vehicles used in the transport of medical marijuana or  
11 medical marijuana product shall be:

- 12 1. Insured at or above the legal requirements in this state;
- 13 2. Capable of securing medical marijuana during transport; and
- 14 3. In possession of a shipping container as defined in Section  
15 427.2 of this title capable of securing all transported products.

16 T. Prior to the transport of any medical marijuana, medical  
17 marijuana concentrate or medical marijuana products, an inventory  
18 manifest shall be prepared at the origination point of the medical  
19 marijuana. The inventory manifest shall include the following  
20 information:

- 21 1. For the origination point of the medical marijuana:
  - 22 a. the licensee number for the commercial grower,  
23 processor, or dispensary,
  - 24 b. the address of origination of transport, and

1 c. the name and contact information for the originating  
2 licensee;

3 2. For temporary storage at a medical marijuana transporter  
4 licensed premises or warehouse location that is licensed and  
5 approved by the Authority:

6 a. the licensee number for the medical marijuana  
7 commercial grower, medical marijuana processor, or  
8 medical marijuana dispensary,

9 b. the address of origination of transport,

10 c. the name and contact information for the originating  
11 licensee, and

12 d. the license number, physical address, and name and  
13 contact information of the medical marijuana  
14 transporter licensed premises or warehouse location  
15 and notation that the medical marijuana, medical  
16 marijuana concentrate, and medical marijuana products  
17 are being temporarily stored;

18 3. For the end recipient license holder of the medical  
19 marijuana:

20 a. the license number for the dispensary, commercial  
21 grower, processor, research facility, or education  
22 facility destination,

23 b. the address of the destination, and  
24

c. the name and contact information for the destination licensee;

~~3.~~ 4. Quantities by weight or unit of each type of medical marijuana product contained in transport;

~~4.~~ 5. The date of the transport and the approximate time of departure;

~~5.~~ 6. The arrival date and estimated time of arrival;

~~6.~~ 7. Printed names and signatures of the personnel accompanying the transport; and

~~7.~~ 8. Notation of the transporting licensee.

U. 1. A separate inventory manifest shall be prepared for each business licensee receiving the medical marijuana.

2. The transporter agent shall provide the other medical marijuana business with a copy of the inventory manifest at the time the product changes hands and after the other licensee prints his or her name and signs the inventory manifest.

3. A receiving business licensee shall refuse to accept any medical marijuana, medical marijuana concentrate or medical marijuana products that are not accompanied by an inventory manifest.

4. Originating and receiving business licensees, including medical marijuana transporter warehouses temporarily storing medical marijuana, medical marijuana concentrate, and medical marijuana products, shall maintain copies of inventory manifests and logs of

1 quantities of medical marijuana received for seven (7) years from  
2 date of receipt.

3 V. 1. A medical marijuana transporter license issued to a  
4 licensed dispensary or a licensed medical marijuana transporter  
5 issued pursuant to this section shall allow the holder to transport  
6 medical marijuana for a medical marijuana dispensary licensed in  
7 this state to a medical marijuana patient licensed in this state  
8 with a Veterans Affairs Benefit Summary Letter with a disability  
9 rating of one hundred percent (100%).

10 2. Prior to the transport of any medical marijuana, medical  
11 marijuana concentrate, and medical marijuana products, a sales  
12 receipt shall be prepared at the medical marijuana dispensary  
13 licensed in this state. A separate receipt shall be prepared for  
14 each medical marijuana patient licensee receiving the medical  
15 marijuana delivery. A quick response (QR) code displayed on the  
16 package may be used in place of a paper receipt.

17 3. The inventory manifest shall include the following  
18 information:

19 a. for the origination point of the medical marijuana:

20 (1) the license number for the dispensary,

21 (2) the address of origination of transport, and

22 (3) the name and contact information for the  
23 originating dispensary,

24 b. for the end recipient medical marijuana licensee:

1           (1) the license number for the dispensary, commercial  
2           grower, processor, research facility, or  
3           educational facility destination,

4           (2) the address of the destination, and

5           (3) the name, license number, and contact information  
6           for the destination licensee,

7       c. quantities by weight or unit of each type of medical  
8       marijuana product contained in transport,

9       d. the date of the transport and the approximate time of  
10       departure,

11       e. the arrival date and estimated time of arrival,

12       f. printed names and signatures, and

13       g. notation of the transporter licensee.

14       4. All delivery sales from a licensed medical marijuana  
15       dispensary to a licensed medical marijuana patient shall be  
16       accomplished through a third-party vendor and shall require:

17       a. the patient to download an application on his or her  
18       electronic device,

19       b. the patient to upload a valid driver license, a  
20       medical marijuana patient license, a three-dimensional  
21       (3D) facial map to the application prior to placing an  
22       order, and a current Veterans Affairs Benefit Summary  
23       Letter with a disability rating of one hundred percent  
24       (100%),

- 1        c. the patient to complete a facial identification or  
2        enter a security code to access the application,  
3        d. the software to verify the patient card with the  
4        Authority's database to confirm that the patient's  
5        license is active each time a delivery order is  
6        initiated,  
7        e. the patient to render payment through the application  
8        upon verification of an active license,  
9        f. the information to be securely transmitted to a  
10       licensed medical marijuana dispensary following the  
11       verification of payment,  
12       g. a location finder, allowing the patient and  
13       transporter agent to identify the location of the  
14       other, and  
15       h. the patient to perform a final 3D facial mapping upon  
16       the transporter agent's arrival to verify that the  
17       individual accepting the delivery is the licensed  
18       patient who placed the order.

19       5. After completing this final verification, the delivery can  
20       be finalized.

21       SECTION 3.       NEW LAW       A new section of law to be codified  
22       in the Oklahoma Statutes as Section 427.16a of Title 63, unless  
23       there is created a duplication in numbering, reads as follows:  
24

1       A. There is hereby created within the Oklahoma Medical  
2 Marijuana Authority a Medical Marijuana Veterans Transporter Pilot  
3 Program. The program shall permit qualifying entities to transport  
4 medical marijuana from a licensed medical marijuana dispensary to a  
5 licensed medical marijuana patient with a current Veterans Affairs  
6 Benefit Summary Letter with a disability rating of one hundred  
7 percent (100%). The pilot program shall expire at the conclusion of  
8 two (2) years from the effective date of this act.

9       B. The Authority shall promulgate rules necessary to implement  
10 the pilot program.

11       SECTION 4. This act shall become effective November 1, 2025.

12 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE  
13 February 27, 2025 - DO PASS AS AMENDED BY CS  
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